

Court No. - 3

Case :- WRIT - C No. - 31145 of 2021

Petitioner :- Ram Chandra

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Rajesh Kumar Nishad

Counsel for Respondent :- C.S.C.,Gaurav Singh

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Syed Aftab Husain Rizvi,J.

As prayed, **list/put up** in the additional cause list before the appropriate bench **on 07.12.2021.**

Order Date :- 30.11.2021

NLY

Court No. - 21

Case :- WRIT - C No. - 31145 of 2021

Petitioner :- Ram Chandra

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Rajesh Kumar Nishad

Counsel for Respondent :- C.S.C., Gaurav Singh

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

The instant petition has been filed praying for quashing of the recovery certificate dated 30.9.2021 for a sum of Rs.1,07,497.07 paise and other charges from the petitioner towards electricity dues.

The case of the petitioner is that the impugned demand is wholly illegal. The petitioner is having 1 KVA load. He is having a Kachcha house. Earlier, a recovery citation was issued on 18.9.2021 for Rs.67,261/- plus other charges but now the respondents are illegally demanding Rs.1,07,497.07 paise.

A perusal of the material placed on record reveals that at the time of meter reading the meter was found to be in defective condition and seal was found broken. It also appears that petitioner had earlier approached this Court by filing Writ-C No. 6084 of 2020 challenging the demand raised by the respondent on the ground that the meter was defective. The said writ petition was disposed of by order dated 20.2.2020 with liberty to the petitioner to take recourse to the provisions of Clause 5.6 and 6.5 of the U.P. Electricity Supply Code, 2005. The petitioner claims to have filed an objection in terms of the order of the High Court on 2.3.2020, however, no material has been placed on record to show that any decision has been taken. The impugned order is not a recovery certificate. It is rather a proposal sent to the petitioner by the department under OTS scheme for depositing certain amount and in which event he would be entitled to waiver of surcharge, which is a sum of Rs.38,117.08 paise. In case, the petitioner does not want to avail the benefit of the OTS scheme, such option is available with him. No ground is made out to quash the proposal. The petition is disposed of with liberty to the petitioner to press the objection which he claims to have filed in pursuance to the previous order of this Court, if it has yet not been decided.

Order Date :- 17.1.2023

VMA

(Vikram D. Chauhan, J.)

(Manoj Kumar Gupta, J.)